

Chapter 4

Dairy produce; birds' eggs; natural honey; edible products of animal origin, not elsewhere specified or included

Notes.

- 1.- The expression "milk" means full cream milk or partially or completely skimmed milk.
- 2.- For the purposes of heading 04.05 :
 - (a) The term "butter" means natural butter, whey butter or recombined butter (fresh, salted or rancid, including canned butter) derived exclusively from milk, with a milkfat content of 80 % or more but not more than 95 % by weight, a maximum milk solids-not-fat content of 2 % by weight and a maximum water content of 16 % by weight. Butter does not contain added emulsifiers, but may contain sodium chloride, food colours, neutralising salts and cultures of harmless lactic-acid-producing bacteria.
 - (b) The expression "dairy spreads" means a spreadable emulsion of the water-in-oil type, containing milkfat as the only fat in the product, with a milkfat content of 39 % or more but less than 80 % by weight.
- 3.- Products obtained by the concentration of whey and with the addition of milk or milkfat are to be classified as cheese in heading 04.06 provided that they have the three following characteristics :
 - (a) a milkfat content, by weight of the dry matter, of 5 % or more;
 - (b) a dry matter content, by weight, of at least 70 % but not exceeding 85 %; and
 - (c) they are moulded or capable of being moulded.
- 4.- This Chapter does not cover :
 - (a) Products obtained from whey, containing by weight more than 95 % lactose, expressed as anhydrous lactose, calculated on the dry matter (heading 17.02); or
 - (b) Albumins (including concentrates of two or more whey proteins, containing by weight more than 80 % whey proteins, calculated on the dry matter) (heading 35.02) or globulins (heading 35.04).

°
° °

Subheading Notes.

- 1.- For the purposes of subheading 0404.10, the expression "modified whey" means products consisting of whey constituents, that is, whey from which all or part of the lactose, proteins or minerals have been removed, whey to which natural whey constituents have been added, and products obtained by mixing natural whey constituents.
- 2.- For the purposes of subheading 0405.10 the term "butter" does not include dehydrated butter or ghee (subheading 0405.90).

GENERAL

This Chapter covers :

(I) Dairy products :

- (A) Milk, i.e., full cream milk and partially or completely skimmed milk.
- (B) Cream.
- (C) Buttermilk, curdled milk and cream, yogurt, kephir and other fermented or acidified milk and cream.
- (D) Whey.
- (E) Products consisting of natural milk constituents, not elsewhere specified or included.
- (F) Butter and other fats and oils derived from milk; dairy spreads.
- (G) Cheese and curd.

The products mentioned at Items (A) to (E) above may contain, in addition to natural milk constituents (e.g., milk enriched in vitamins or mineral salts), small quantities of stabilising agents which serve to maintain the natural consistency of the product during transport in liquid state (disodium phosphate, trisodium citrate and calcium chloride, for instance) as well as very small quantities of anti-oxidants or of vitamins not normally found in the product. Certain of these products may also contain small quantities of chemicals (e.g., sodium bicarbonate) necessary for their processing; products in the form of powder or granules may contain anticaking agents (for example, phospholipids, amorphous silicon dioxide).

On the other hand, the Chapter **excludes** products obtained from whey, containing by weight more than 95 % lactose, expressed as anhydrous lactose, calculated on the dry matter (**heading 17.02**). For the purposes of calculating the percentage weight of lactose in a product the expression "dry matter" should be taken to exclude both free water and water of crystallisation.

The Chapter also **excludes**, *inter alia*, the following :

- (a) Food preparations based on dairy products (in particular, **heading 19.01**).
- (b) Products obtained from milk by replacing one or more of the natural constituents (e.g., butyric fats) by another substance (e.g., oleic fats) (**heading 19.01 or 21.06**).
- (c) Ice cream and other edible ice (**heading 21.05**).
- (d) Medicaments of **Chapter 30**.
- (e) Casein (**heading 35.01**), milk albumin (**heading 35.02**) and hardened casein (**heading 39.13**).

(II) Birds' eggs and egg yolks.

(III) Natural honey.

(IV) Edible products of animal origin, not elsewhere specified or included.

04.01 - Milk and cream, not concentrated nor containing added sugar or other sweetening matter.

0401.10 - Of a fat content, by weight, not exceeding 1 %

0401.20 - Of a fat content, by weight, exceeding 1 % but not exceeding 6 %

0401.40 - Of a fat content, by weight, exceeding 6 % but not exceeding 10 %

0401.50 - Of a fat content, by weight, exceeding 10 %

This heading covers milk (as defined in Note 1 to this Chapter) and cream, whether or not pasteurised, sterilised or otherwise preserved, homogenised or peptonised; but it **excludes** milk and cream which have been concentrated or which contain added sugar or other sweetening matter (**heading 04.02**) and curdled, fermented or acidified milk and cream (**heading 04.03**).

The products of this heading may be frozen and may contain the additives referred to in the General Explanatory Note to this Chapter. The heading also covers reconstituted milk and cream having the same qualitative and quantitative composition as the natural products.

04.02

04.02 - Milk and cream, concentrated or containing added sugar or other sweetening matter (+).

0402.10 - In powder, granules or other solid forms, of a fat content, by weight, not exceeding 1.5 %

- In powder, granules or other solid forms, of a fat content, by weight, exceeding 1.5 % :

0402.21 - - Not containing added sugar or other sweetening matter

0402.29 - - Other

- Other :

0402.91 - - Not containing added sugar or other sweetening matter

0402.99 - - Other

This heading covers milk (as defined in Note 1 to this Chapter) and cream, concentrated (for example, evaporated) or containing added sugar or other sweetening matter, whether liquid, paste or solid (in blocks, powder or granules) and whether or not preserved or reconstituted.

Milk powder may contain small quantities of starch (not exceeding 5 % by weight), added, in particular, to maintain the reconstituted milk in its normal physical state.

The heading does not cover :

(a) Curdled, fermented or acidified milk or cream (heading 04.03).

(b) Beverages consisting of milk flavoured with cocoa or other substances (heading 22.02).

°
° °

Subheading Explanatory Note.

Subheadings 0402.10, 0402.21 and 0402.29

These subheadings do not cover concentrated milk or cream in the form of paste (subheadings 0402.91 and 0402.99).

04.03 - Buttermilk, curdled milk and cream, yogurt, kephir and other fermented or acidified milk and cream, whether or not concentrated or containing added sugar or other sweetening matter or flavoured or containing added fruit, nuts or cocoa.

0403.10 - Yogurt

0403.90 - Other

This heading covers buttermilk, and all fermented or acidified milk and cream and includes curdled milk and cream, yogurt and kephir. The products of this heading may be in liquid, paste or solid (including frozen) form and may be concentrated (e.g., evaporated or in blocks, powder or granules) or preserved.

Fermented milk of this heading may consist of milk powder of heading 04.02 containing small quantities of added lactic ferments, with a view to its use in prepared meat products or as an additive for animal feed.

Acidified milk of this heading may consist of milk powder of heading 04.02 containing small quantities of added acid (including lemon juice) in crystal form in order to produce curdled milk on reconstitution with water.

Apart from the additives mentioned in the General Explanatory Note to this Chapter, the products of this heading may also contain added sugar or other sweetening matter, flavourings, fruit (including pulp and jams), nuts or cocoa.

04.04

04.04 - Whey, whether or not concentrated or containing added sugar or other sweetening matter; products consisting of natural milk constituents, whether or not containing added sugar or other sweetening matter, not elsewhere specified or included.

0404.10 - Whey and modified whey, whether or not concentrated or containing added sugar or other sweetening matter

0404.90 - Other

This heading covers whey (i.e., the natural constituents of milk which remain after the fat and casein have been removed) and modified whey (see Subheading Note 1 to this Chapter). These products may be in liquid, paste or solid (including frozen) form, and may be concentrated (e.g., in powder) or preserved.

The heading also covers fresh or preserved products consisting of milk constituents, which do not have the same composition as the natural product, provided they are not more specifically covered elsewhere. Thus the heading includes products which lack one or more natural milk constituents, milk to which natural milk constituents have been added (to obtain, for example, a protein-rich product).

Apart from natural milk constituents and the additives mentioned in the General Explanatory Note to this Chapter, the products of this heading may also contain added sugar or other sweetening matter.

The powdered products of this heading, particularly whey, may contain small quantities of added lactic ferments, with a view to their use in prepared meat products or as additives for animal feed.

The heading does not cover :

- (a) Skimmed milk or reconstituted milk having the same qualitative and quantitative composition as natural milk (heading 04.01 or 04.02).
- (b) Whey cheese (heading 04.06).
- (c) Products obtained from whey, containing by weight more than 95 % lactose, expressed as anhydrous lactose, calculated on the dry matter (heading 17.02).
- (d) Food preparations based on natural milk constituents but containing other substances not allowed in the products of this Chapter (in particular, heading 19.01).
- (e) Albumins (including concentrates of two or more whey proteins, containing by weight more than 80 % whey proteins, calculated on the dry matter) (heading 35.02) or globulins (heading 35.04).

04.05 - Butter and other fats and oils derived from milk; dairy spreads.

0405.10 - Butter

0405.20 - Dairy spreads

0405.90 - Other

This heading covers :

(A) Butter.

This group covers natural butter, whey butter and recombined butter (fresh, salted or rancid, including canned butter). Butter must be derived exclusively from milk and must have a milkfat content of 80 % or more but not more than 95 % by weight, a maximum milk solids-not-fat content of 2 % by weight and a maximum water content of 16 % by weight. Butter contains no added emulsifiers, but may contain sodium chloride, food colours, neutralising salts and cultures of harmless lactic-acid-producing bacteria. (See Note 2 (a) to this Chapter).

Butter obtained from goat's or sheep's milk is also covered by this group.

(B) Dairy spreads.

This group covers dairy spreads, i.e., spreadable emulsions of the water-in-oil type, containing milkfat as the only fat in the product, and having a milkfat content of 39 % or more but less than 80 % by weight (see Note 2 (b) to this Chapter). Dairy spreads may contain optional ingredients such as cultures of harmless lactic-acid-producing bacteria, vitamins, sodium chloride, sugars, gelatine, starches; food colours; flavours; emulsifiers; thickening agents and preservatives.

(C) Other fats and oils derived from milk.

This group covers fats and oils derived from milk (e.g., milkfat, butterfat and butteroil). Butteroil is the product obtained by extracting the water and non-fat content from butter or cream.

This group further includes dehydrated butter and ghee (a kind of butter made most commonly from the milk of buffaloes or cows), as well as products consisting of a mixture of butter and small quantities of herbs, spices, flavourings, garlic, etc. (provided they retain the character of the products falling in this heading).

The heading **does not cover** fat spreads containing fats other than milkfats or containing less than 39 % by weight of milkfat (generally heading 15.17 or 21.06).

04.06

04.06 - Cheese and curd (+).

0406.10 - Fresh (unripened or uncured) cheese, including whey cheese, and curd

0406.20 - Grated or powdered cheese, of all kinds

0406.30 - Processed cheese, not grated or powdered

0406.40 - Blue-veined cheese and other cheese containing veins produced by *Penicillium roqueforti*

0406.90 - Other cheese

This heading covers all kinds of cheese, viz. :

- (1) Fresh cheese (including cheese made from whey or buttermilk) and curd. Fresh cheese is an unripened or uncured cheese which is ready for consumption shortly after manufacture (e.g., Ricotta, Broccio, cottage cheese, cream cheese, Mozzarella).
- (2) Grated or powdered cheese.
- (3) Processed cheese, also known as process cheese. It is manufactured by comminuting, mixing, melting and emulsifying, with the aid of heat and emulsifying or acidifying agents (including melting salts), one or more varieties of cheese and one or more of the following : cream or other dairy products, salt, spices, flavouring, colouring and water.
- (4) Blue-veined cheese and other cheese containing veins produced by *Penicillium roqueforti*.
- (5) Soft cheese (e.g., Camembert, Brie).
- (6) Medium-hard cheese and hard cheese (e.g., Cheddar, Gouda, Gruyère, Parmesan).

Whey cheeses are obtained by concentrating whey and adding milk or milk fat. They are classified in this heading only if they have the three following characteristics :

- (a) a milkfat content, by weight of the dry matter, of 5 % or more;
- (b) a dry matter content, by weight, of at least 70 % but not exceeding 85 %;
- (c) they are moulded or capable of being moulded.

The presence of meat, fish, crustaceans, herbs, spices, vegetables, fruit, nuts, vitamins, skimmed milk powder, etc., does not affect classification **provided** that the goods retain the character of cheese.

Cheeses which have been coated with batter or bread crumbs remain classified in this heading whether or not they have been pre-cooked, provided that the goods retain the character of cheese.

°
° °

Subheading Explanatory Note.**Subheading 0406.40**

This subheading covers cheese containing visible veins in the body of the cheese that may be blue, green, greenish-blue or whitish-grey in colour, such as Bleu d'Auvergne, Bleu de Causses, Bleu de Quercy, Blue Cheshire, Blue Dorset, Blue Wensleydale, Cabrales, Danish Blue (Danablu), Gorgonzola, Mycella, Roquefort, Saingorlon and Stilton, as well as cheeses with proprietary or trade names, provided they meet the above criterion.

04.07

04.07 - Birds' eggs, in shell, fresh, preserved or cooked.

- Fertilised eggs for incubation :

0407.11 - - Of fowls of the species *Gallus domesticus*

0407.19 - - Other

- Other fresh eggs :

0407.21 - - Of fowls of the species *Gallus domesticus*

0407.29 - - Other

0407.90 - Other

This heading covers fertilised eggs for incubation and other fresh (including chilled) eggs of all birds. It also covers preserved or cooked eggs, in shell.

04.08 - Birds' eggs, not in shell, and egg yolks, fresh, dried, cooked by steaming or by boiling in water, moulded, frozen or otherwise preserved, whether or not containing added sugar or other sweetening matter.

- Egg yolks :

0408.11 -- Dried

0408.19 -- Other

- Other :

0408.91 -- Dried

0408.99 -- Other

This heading covers whole eggs, not in the shell, and egg yolks of all birds. The products of this heading may be fresh, dried, cooked by steaming or by boiling in water, moulded (e.g., cylindrical "long eggs"), frozen or otherwise preserved. All these fall in the heading whether or not containing added sugar or other sweetening matter and whether for use as food or for industrial purposes (e.g., in tanning).

The heading does not cover :

- (a) Oil of egg yolk (heading 15.06).
- (b) Egg preparations containing seasoning, spices or other additives (heading 21.06).
- (c) Lecithin (heading 29.23).
- (d) Separate egg white (egg albumin) (heading 35.02).

04.09

04.09 - Natural honey.

This heading covers honey produced by bees (*Apis mellifera*) or by other insects, centrifuged, or in the comb or containing comb chunks, provided that neither sugar nor any other substance has been added. Such honey may be designated by floral source, origin or colour.

The heading **excludes** artificial honey and mixtures of natural and artificial honey (**heading 17.02**).

04.10 - Edible products of animal origin, not elsewhere specified or included.

This heading covers products of animal origin suitable for human consumption, not specified or included elsewhere in the Nomenclature.

It includes :

- (1) **Turtles' eggs.** These are eggs laid by river or marine turtles; they may be fresh, dried or otherwise preserved.

Turtle-egg oil is excluded (heading 15.06).

- (2) **Salanganes' nests** ("birds' nests"). These consist of a substance secreted by the bird which solidifies rapidly on exposure to air.

The nests may be presented untreated, or they may have been cleaned to remove feathers, down, dust and other impurities in order to render them suitable for consumption. They are generally in the form of whitish strips or threads.

Salanganes' nests have a high protein content and are used almost exclusively to make soups or other food preparations.

The heading excludes animal blood, edible or not, liquid or dried (heading 05.11 or 30.02).
